Found, Missing or Not Sure?

A quick check of what your family can bring to an elder law attorney. Thirteen questions. At the end: what you have, what's still unclear, and what to ask.

Answer yes, no or not sure. This checks how complete your family's picture is. It doesn't judge Mom's papers, and a no or a not sure only means there is something still to find or ask.

1. Have you found Mom's power of attorney for money and property, the document itself?

◯ Yes ◯ No ◯ Not sure

2. Have you found her healthcare decision-making documents, such as a healthcare power of attorney or a living will?

◯ Yes ◯ No ◯ Not sure

3. Do you know whether Mom has a will or a trust, and where each one is?

◯ Yes ◯ No ◯ Not sure

4. Do you have the deed to her home, or a copy of it?

◯ Yes ◯ No ◯ Not sure

5. For each paper you've found, have you written down its date, where it is kept and who holds it?

◯ Yes ◯ No ◯ Not sure

6. Have you written down who each document names to act for Mom, in the document's own words?

◯ Yes ◯ No ◯ Not sure

7. Have you written down what you've seen of how Mom is handling decisions lately, as what you saw and when?

◯ Yes ◯ No ◯ Not sure

8. Do you know how her home and other property are titled, from the papers and not from memory?

◯ Yes ◯ No ◯ Not sure

9. Do you know whether any gifts, transfers or ownership changes have been made, and are they listed with dates?

◯ Yes ◯ No ◯ Not sure

10. Have you written down the changes the family is talking about, such as the house or other assets?

◯ Yes ◯ No ◯ Not sure

11. Have you written a short list of legal questions for the attorney?

◯ Yes ◯ No ◯ Not sure

12. Is the financial information your family has organized ready to hand to the attorney?

◯ Yes ◯ No ◯ Not sure

13. For each open question, do you know who it goes to?

◯ Yes ◯ No ◯ Not sure

Answer the questions above and your page builds here.

WHAT YOU HAVE

WHAT'S STILL MISSING OR UNCLEAR

QUESTIONS TO CLARIFY

What this doesn't do

It counts what your family has in hand, not whether Mom's papers do what you need. A low count means there are things still to find, and many of them are a drawer, a phone call or a relative away. It doesn't say who has authority to act for her, what any paper means, or whether anything needs to change. Rules vary by state, nothing here is legal, financial or tax advice, and those questions go to an elder law attorney.

Ready for the next step?

You can see what you have ready for an attorney and what's still missing or unclear. The planning interview asks about your family's situation and gives you a free planning report you can bring to the attorney meeting. Keep the page you just copied beside you while you answer.

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